MSEA
MICRO AND SMALL ENTERPRISES AUTHORITY

Entrepreneurship transforming Kenya

CONSTITUTION OF THE PLASTOUT KERICHO GROUP

1. NAME

The name of the Group shall be **Plastout Kericho Group**

Located at Kericho Town.

2. OBJECTIVES

The objectives of the Association are as follows:

a) To reduce plastic pollution within Kericho County
b) To promote the re-use and recycling of plastic materials
c) To organize regular plastic collection and environmental clean-up exercises
d) To educate communities on the dangers of plastic pollution
e) To encourage sustainable environmental practices among young people and wider community
f) To partner with schools, government agencies and environmental organizations in conservation activities
g) To develop innovative solutions for plastic waste management
h) To contribute to the climate action and environmental protection efforts
i) To foster team work, leadership and voluntarism among members

3. MEMBERSHIP

a) Membership shall be open to anybody who is involved in reduction of plastic pollution in the society

b) All members must be aged 18 years or over.

c) Membership shall cease upon legal dissolution of the group.

4. SUBSCRIPTIONS

a) Each member of the Group shall pay a non-refundable entrance fee of Kshs 300.

b) Each member shall pay a monthly fee of Kshs 100

c) The annual/monthly fee will be reviewed at each AGM.

d) The fee will cover the administration and running costs of the Group.

e) Any person who falls into arrears with his monthly subscription for more than six months shall automatically cease to be a member and his/her name shall be struck off the register. However, the Committee may at its discretion, and upon request by the member reinstate such member upon payment of the total outstanding amount.

5. EXPULSION, RESIGNATION OR SUSPENSION OF MEMBERS

a) Any member may be expelled from membership if the Committee so recommends and upon a resolution in a General Meeting by a simple majority of the members present on the following grounds:-

   i. That the members conduct has adversely affected the reputationor dignity of the Group.

   ii. That the member has contravened the rules and regulations ofthe Group.

b) A Member whose expulsion is proposed shall have the right to addressthe General Meeting at which his expulsion is to be considered.

c) Any member desiring to resign from the Group shall submit resignation to the Secretary, which shall take effect from the date of receipt by the Secretary of such notice.

d) Any person who resigns shall not be entitled to a refund of his/her subscription or any part thereof contributed during the time he/she was a member.

e) The Committee shall have the powers to suspend a Member from his membership until the next General Meeting.

6. TITLES OF OFFICERS, TRUSTEES AND AUDITORS

a) The office bearers of shall be:-

(i) The Chairman

(ii) The Vice-Chairman

(iii) The Secretary

(iv) The Assistant Secretary

(v) The Treasurer

(vi) The Organizing Secretary

(vii) The Assistant Organizing Secretary

All of whom shall be fully paid-up members and shall be elected at the annual general meeting to be held in every 1 year.

b) All office bearers shall hold office from the date of election until the succeeding annual general meeting subject to the conditions contained insub-paragraphs (c) and (d) of this rule but shall be eligible for re-election.

c) Any office bearer who ceases to be a member of the Group shall automatically cease to be an office bearer thereof.

d) Office bearers may be removed from office in the same way as is laid down for the expulsion of members and persons elected at the general meetingresolving the expulsion shall fill vacancies thus created.

6.1 DUTIES OF THEBEARERS

a) **Chairman**: The Chairman shall, unless prevented by illness or other sufficient cause, preside over all meetings of the Committee and GeneralMeeting.

b) **Vice-Chairman**: The Vice-Chairman shall perform any duties of the Chairman in hisabsence.

c) **Secretary**: The Secretary shall deal with all the correspondence under the general supervision of the committee. In case of urgent matter where the committee cannot be consulted, he/she shall consult the Chairman or if not available, the Vice-Chairman. The decisions reached shall be subject to ratification or otherwise at the next committee meeting. He shall issue notices convening all meetings of the committee and all general meetings of the Group and shall be responsible for keeping minutes of all such meetings and for the preservation of all records of proceedings of the Group and of the committee.

d) **Assistant Secretary**: In the absence of the Secretary, the Vice Secretary shall perform all the duties of the Secretary and such other dutiesas shall be assigned to him by the Secretary or committee whether the Secretary is present or not.

e) **Treasurer**: The Treasurer shall receive and shall also disburse, under the directions of the committee, all moneys belonging to the association and shall issue receipts for all moneys received by him and preserve vouchers for all moneys paid by him. The Treasurer is responsible to the committee and to the members that proper books of account and all moneys received and paid to the Group are written up, preserved and available for inspection.

f) **The Organizing Secretary**: The Organizing Secretary shall organize and arrange functions of the Group in consultation with the secretary and shall perform any such duty assigned to him by the committee.

g) **Assistant Organizing Secretary**: The Assistant Organizing Secretary shall perform the duties of the Organizing Secretary in his absence.

7. COMPOSITION OF COMMITTEES AND AUTHORITY AND METHOD OFFILLING VACANCIES ON COMMITTEES

a) A committee shall be elected at the Annual General Meeting (AGM) and shall serve a full 12 month term.

b) The committee shall consist of at least *three* members, who shall have the power to co-opt other members on to the committee during the course of the year. All committee members shall have voting rights.

c) The committee shall elect from within their number the following office bearers: Chairperson, (*Vice-chairperson,*) Secretary, *(Vice-secretary*), and Treasurer

d) The committee and office bearers shall make and carry out decisions in accordance with the objectives of theGroup.

e) Meetings of the committee shall be open to any member of the Groupwho wishes to attend.

f) There must be at least three of the committee members present for any decision to be made at a committee meeting

g) Committee members can be voted off if they have not attended three consecutive meetings without good reason and have not submitted their apologies.

h) Committee members must declare any interest they may have in the topic under

discussion and the committee shall decide if they need to forfeit theirright to vote on that matter.

8. QUORUM AND DATES OF GENERAL MEETING

a) An AGM shall be held every year to discuss the activities of the Group,to receive the audited accounts and to elect the committee.
b) The AGM shall be held at a suitable venue to accommodate as many members as possible.
c) The quorum shall be two third of the membership. All votes shall be decided by a simple majority of the members present. This applies to allgeneral meetings of the Group.
d) At least 21 days notice shall be given to members of the AGM.
e) At the AGM the resignation of all committee members shall be acceptedand a new committee elected.

8.1 General Meetings (including Special or Emergency Meetings)

a) General meetings for all members of the Group shall be held regularlyto discuss matters and to keep members fully informed of the Group's activities.
b) Members shall be given at least 14 days notice of a general meeting.
c) Members who are unable to attend the meeting may apply to the committee to join the meeting via telephone or other electronic means. Application must be made to the Secretary at least 7 days before the meeting. The minute must record how members joined the meeting and which agenda items they took part in.
d) A simple majority of the members present shall decide all votes. This applies to all general meetings of theGroup.
e) Any member, having the written support of one third or more other members, may request the committee to call a Special General Meeting ofthe Group. The committee shall call the Special General Meeting within 21 days of receiving this request.

9. CUSTODY AND INVESTMENT OF FUNDS AND PROPERTY

a) The Group may raise funds by obtaining grants from other bodies or by fundraising schemes. All money raised by or on behalf of the Group shall be

applied to further its objectives

b) All funds shall be kept in a bank account that shall be opened in the name of the Group

c) The Secretary, Treasurer and Chairperson shall be signatories on the account and all cheques shall require all of these signatories.

d) Accounts shall be kept by the Treasurer, and brought to every committee meeting where they may be inspected. Failure to bring the books to a meeting on three consecutive occasions shall mean the Treasurer be asked to resign.

e) All expenditure shall be agreed and controlled by the committee. Receipts are required for all expenditures.

f) No officer shall sign a blank cheque. All cheques shall be filled in before signatures are added.

g) Once a year, the accounts shall be audited and presented to the Annual General meeting of the Group. The auditors shall be an appropriatelyqualified or experienced independent body.

h) All correspondence of the Group, including the bank statement, shallbe addressed to the Secretary.

10. PURPOSES FOR USE OF FUNDS

The funds of the Group may only be used for the following purposes:-

i. Assisting members during some difficulty;
ii. Promoting the welfare of members;
iii. Investment in money generating areas.
iv. To finance Group activities

(a) All moneys and funds shall be received by and paid to the Treasurer and shall be deposited by him in the name of the group in any bank or banksapproved by the committee.

(b) No payments shall be made out of the bank account without a resolution ofthe committee authorizing such payment and all cheques on such bank account shall be signed by all the signatories.

(c) A sum not exceeding Kshs.5, 000/-, may be kept by the Treasurer for petty disbursement of which proper account shall be kept.

(d) The committee shall have power to suspend any office bearer who it has reasonable cause to believe is not properly accounting for any of the funds or

property of the Group and shall have the power to appoint another person in his place. Such suspension shall be reported to a general meeting to be convened on a date not later than two months from the date of such suspension and the general meeting shall have full power to decide what further action should be taken in the matter.

(e) The financial year of the group shall be from 1st January to 31st December.

11. INSPECTION OF BOOKS AND LIST OF MEMBERS

The books of account and all documents relating thereto and a list of members shall be available for inspection at the registered office by any officer or member of the Group on giving not less than seven days' notice in writing to the Group.

12. ANNUAL OR PERIODICAL AUDIT OF ACCOUNTS

a) An auditor shall be appointed for the following year by the annual general meeting. All the group's accounts, records and documents shall be opened to the inspection of the auditor at any time. The Treasurer shall produce an account of his receipts and payments and a statement of assets and liabilities made up to a date of the annual general meetings. The auditor shall examine such annual accounts and statements and either clarify that they are correct, duly vouched and in accordance with the law orreport to the group in what respect they are found to be incorrect, untouched or not in accordance with the law.

b) A copy of the auditor's report on the accounts and statements together withsuch accounts and statements shall be furnished to all members at the same time as the notice convening the annual general meeting is sent out. An auditor may be paid such honorarium for his duties as may be resolvedby the annual general meeting appointing him.

c) An auditor shall not be an office bearer or a member of the committee of the group.

13. FORMATION OF BRANCHES

Branches may be formed with the approval of the committee and the Registrar, Micro and Small Enterprises and they will adopt the same constitution as that of the headquarters with the following exception;

a) The aims and objectives will not include the formation of branches.

b) Amendments to the constitution can only be made by the headquarters ofthe

Group.

c) The branches will not be dissolved without consultation with theirheadquarters and the Registrar, Micro and Small Enterprises.

(**NOTES**: *All such branches are required to be registered under the Micro and Small Enterprises Act, 2012*).

14. AMENDMENTS TO THE NAME, CONSTITUTION OR RULES

Amendments to the constitution of the group must be approved by at least atwo-thirds majority of members at a general meeting of the Group. They cannot, however, be implemented without prior consent in writing of the Registrar, MSE obtained upon application to him/her made in writing and signed by three of the office bearers.

15. DISSOLUTION AND DISPOSAL OF PROPERTY.

a) The group shall not be dissolved except by resolution passed at a general meeting of members by a vote of two-thirds of the members present. The quorum at the meeting shall be a shown in rule 8 (e). If no quorum is obtained, the proposal to dissolve the group shall be submitted to a further general meeting which shall be held one month later. Notice of this meeting shall be given to all members of the Group at least 14 days beforethe date of the meeting. The quorum for this second meeting shall be the number of members present.

b) Provided, however, that no dissolution shall be effected without prior permission in writing to the Registrar, obtained upon application to him made in writing and signed by three of the office bearers.

c) When the dissolution of the Group has been approved by the Registrar, MSE no further action shall be taken by the Committee or any office bearer of the Group in connection with the aims of the Group other than to get in and liquidate for cash all the assets of the Group . Subject to the payment of all the debts of the Group, the balance thereof shall be distributed in such other manner as may be resolved by the meeting at which the resolution fordissolution is passed.

16. DISPUTE RESOLUTION

Whenever a dispute arises between the Executive Committee members, Members of the Group, between themselves or any
other party, the dispute shall be at the first instance referred to the Executive Committee members to resolve it. If any of the parties is aggrieved, they shall refer the Dispute to Micro and Small Enterprises Authority for resolution. Further if a party is dissatisfied with the final outcome, they shall be at liberty to refer the dispute to the Micro and Small Enterprises Tribunal.

17. ADOPTION

This constitution was adopted by members at a General Meeting of the **Plastout Kericho Group** held on **26/7/2026** and formally adopted at the subsequent committee meeting held on **2/8/2026**.

	PRINT NAME	SIGNED
CHAIRPERSON	ABRAHAM WANJALA	
SECRETARY	STAICY CHEPCHIRCHIR	
TREASURER	HILLARY KIPNGETICH	

1) RULES ON THE CONDUCT OF COMMITTEE MEETINGS

a) The quorum for meeting of the committee shall be not less than 2/3 members.

b) Committee members may only speak through the chair

c) Decisions shall be agreed by a simple majority, voted in through a show of hands, or a secret ballot.

d) All moneys disbursed on behalf of the association shall not be authorized by the committee except where expressly specified.

e) Any offensive behaviour, including racist, sexist, ageist, homophobic or other inflammatory remarks shall not be permitted

f) Any committee member who brings the Association into disrepute or refuses to comply with the constitution shall be expelled on the majority vote of the full committee.

g) The Secretary shall deal with all correspondence

h) Agenda shall be distributed to the membership at least four days before a meeting, where possible. Items for the agenda should be forwarded to the secretary and Chair at least seven days before the meeting, where possible.

i) Minutes shall be distributed to all members as soon as possible after the meeting. Minutes may be sent via post, hand delivery or electronic communication.

1) **RULES GOVERNING OPERATION OF THE**

ACCOUNTGeneral Rules.

The maintenance account must be a bank or building account which isinterest bearing.

Members to come up with rules on management of the account, how paymentswill be made and maintenance or any proposed works.

3. **Rules governing elections**

a) The Officials to notify the Authority and Group Membership at least 21days before date of elections.
b) Notice be affixed on strategic and conspicuous places where all memberscan be able to see and be notified accordingly.
c) Members' be allowed to campaign peacefully.
d) Voting be by secret ballot.
e) Elections be presided over by Officers from the Authority.
f) Members register to be vetted one week before elections by an officer of the Authority and Registrar,MSE.
g) Elections be held once they fall due, to be in tandem with the Group's financial year cycle.

NOTE:

This Constitution shall comply in all aspects with the Micro and Small EnterprisesAct, 2012 and all regulations made thereunder and any conflict whatsoever with the aforesaid Act and or Regulations, the provisions of the Act and Regulations shall prevail.